

Abrar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 October 2020 · WRIT - C No. 15633 of 2020 · **Writ disposed; petitioner relegated to clause 6.5; no merits opinion.**

HEADNOTE

Writ challenging the Executive Engineer's arrear determination of Rs.1,81,302/- and disconnection of supply is disposed of. The consumer is given liberty to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If approached within two weeks with a copy of the order, that authority shall decide the dispute expeditiously, preferably within three weeks, in accordance with law after hearing. No opinion on merits.

FACTUAL SUMMARY

The petitioner, Abrar, challenged an order dated 27 June 2020 of the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Hapur, which determined electricity arrears of Rs.1,81,302/- and disconnected the connection. The High Court heard counsel for the petitioner, the standing counsel for the State, and counsel for the distribution licensee. The licensee's counsel submitted that a remedy lay under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that the petitioner could approach the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute / arrear assessment / disconnection — statutory objection

HOLDING

A writ challenging the Executive Engineer's order determining arrears and disconnecting supply is disposed of by giving liberty to the consumer to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer approaches that authority within two weeks with a copy of the order, the authority shall decide the dispute expeditiously, preferably within three weeks, in accordance with law after affording a reasonable opportunity of hearing. The Court expressed no opinion on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy Writ against the Executive Engineer's arrear determination and disconnection was disposed by relegating the consumer to the Clause 6.5 remedy, with a time-bound direction to decide if approached within two weeks. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed arrear assessment of Rs.1,81,302/- and consequent disconnection were left to the Clause 6.5 competent authority; the writ court did not examine the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS.1,81,302/- ARREAR DETERMINATION AND THE DISCONNECTION

The Court expressly stated it had not expressed any opinion on the merits of the petitioner's case. ¶ 1